

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY  
AUTHORITY,  
MUMBAI**

**Non- Execution Application  
in**

**Complaint No.CC006000000001419**

Mr. Ajay Sankhyan

.... Complainant

**Versus**

M/S Nirmal Lifestyle Kalyan Pvt Ltd

.... Respondent

**Project Registration No.P51700003544**

**Coram: Dr. Vijay Satbir Singh, Hon'ble Member - 1/MahaRERA**

The complainant appeared in person.

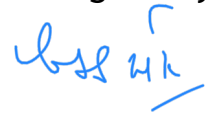
Adv. Tushar Kadam a/w Vaishali Mohite appeared for the respondent

**ORDER**

(16<sup>th</sup> October, 2020)

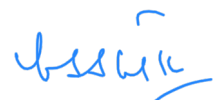
(Through Video Conferencing)

1. The complainant above named has filed this application for non-execution of order dated 17<sup>th</sup> April, 2018 passed by the MahaRERA in the aforesaid complaint filed with respect to project registered by the respondent with MahaRERA. By the said order the complaint was disposed of in view of the consent terms filed on record by both the parties whereby they settled the matter amicably.
2. This application is heard finally today as per the Standard Operating Procedure dated 12<sup>th</sup> June 2020 issued by MahaRERA for hearing of complaints through Video Conferencing. Both the parties have been issued prior intimation of the hearing. Accordingly, both the parties appeared and made their submissions.
3. During the hearing, the complainant has informed MahaRERA that till date, the respondent has not adhered to the consent terms signed by it



whereby it has agreed to pay monthly interest to him. He further stated that though the possession has been offered to him by the respondent, the basic amenities are not provided on site as there is no KDMC water connection in the said building. Moreover, there are only 10 flats occupied in the said building out of total 240 flats.

4. However, during the hearing, the respondent disputed the claim of the complainant and stated that it has obtained occupancy for this project from KDMC and possession has already been offered to him. However, the complainant has refused to take possession of his flat and hence the present non-execution application is not maintainable.
5. The MahaRERA has examined the arguments advanced by both the parties as well as the record. In the present case, admittedly there is no order passed by the MahaRERA on merits. However, the complaint filed by the complainant was disposed of in view of the settlement arrived at between both the parties whereby the consent terms were filed by record of MahaRERA. Now it has informed MahaRERA that the occupancy certificate for the said building is obtained in the month of August, 2019 and possession has also been offered to the complainant, which he has refused stating that the amenities are not yet provided.
6. In this regard, the MahaRERA is of the view that since the occupancy certificate has already been obtained, the possession can be given to the complainant and the complainant is also entitled to seek interest till the date of occupancy certificate is obtained for the said project, which can be adjusted with the outstanding dues payable by the complainant if any. If the complainant has any grievances about the amenities, he is at liberty to file a fresh complaint under the relevant provision of RERA, if he so desires.



7. With these observations, the non-execution application stands disposed of.

*V. Singh*

(Dr. Vijay Satbir Singh)  
Member - 1/MahaRERA

